DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
WEDNESDAY, JUNE 24, 2026

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

JP MORGAN CHASE BANK N.A. v. JOSE LOPEZ
Case No. CL25-08964

Motion to Deem Matters Admitted

Tentative Ruling:

Plaintiff's unopposed Motion to Deem Matters Admitted is GRANTED. Defendant JOSE LOPEZ shall be deemed to have admitted all propounded Requests for Admission (Set One).
The proposed order lodged with the court will be processed forthwith.

BANK OF AMERICA N.A. v. MARIA CARDOSA
Case No. CL25-09955

Motion to Deem Matters Admitted

Tentative Ruling:

Plaintiff's unopposed Motion to Deem Matters Admitted is GRANTED. Defendant MARIA CARDOSA shall be deemed to have admitted all propounded Requests for Admission (Set One).
The proposed order lodged with the court will be processed forthwith.

YOUSSEF ELFAR v. MIRVAT NUSSEIRI
Case No. CU24-00199

Motion to Withdraw as Attorney of Record

TENTATIVE RULING

The motion to be relieved as counsel is DENIED WITHOUT PREJUDICE.

It appears the proof of service for this motion was rejected by the clerk as it reflected a future service date. The court has no proof that this motion has been served by counsel on his client.

REINA MAGALLON v. GUILLERMO FONSECA
Case No. CU24-00413

Motion to Enforce Settlement Agreement Pursuant to Code of Civil Procedure section 664.4.

TENTATIVE RULING:

Plaintiff's motion to enforce the settlement agreement is GRANTED.

The parties agreed that Defendant would refinance the property in order to remove Plaintiff from the loan and Defendant would pay $52,000 to Plaintiff. Defendant's exhibits demonstrate that Defendant attempted to assume the loan in his own name, but did not qualify due to his loan to debt ratio and the uncertainty of the payout to the second owner. (Letter from Edge Home Finance.) However, that uncertainty was actually not an issue as the parties had already agreed to a payout sum. The suggestion that Plaintiff accept a loan instead of a payout was a material change to the terms of the settlement agreement. Defendant does not otherwise show evidence of any effort to separately refinance by qualifying for an independent, unrelated mortgage.

Defendant attaches paperwork that includes a demand to renegotiate the settlement agreement. However, the parties had already negotiated a second option in the event Defendant was not able to refinance the loan: sale of the property. The parties agreed that the expenses of the sale would be taken from escrow and divided equally and in the event the parties did not reach an agreement on division of proceeds, the proceeds would be divided equally "50/50."

The property shall be sold in accordance with the previously negotiated settlement agreement.

In the next 15 calendar days, the parties shall meet and confer to select a mutually acceptable real estate broker to facilitate the sale of the property and cooperate in signing all necessary documents for the transaction. If the parties cannot agree on a broker, they will each submit the names of two independent brokers to the court, include information related to compensation and experience of each proposed broker, and notify the judicial assistant for Department 8 of the submission, and the court will select a broker. No broker can be affiliated with either party, i.e. no family or friends or individuals you have previously worked with.